

Licensing & Registration Matrix — Goods-Delivery Marketplace (GetBriefed Inc/LLC d/b/a Clinkit)

⚠ Research summary prepared by an AI agent from general knowledge (cutoff Jan 2026). **Verify each item with licensed counsel and the cited agency before launch.** Items marked ◆ are genuinely unsettled for gig goods-delivery and need a counsel opinion.

Federal

Item	Status / action
EIN	Assumed held by GetBriefed. Add d/b/a "Clinkit" via county/state fictitious-name filing.
1099-K (buyers' payments to runners via platform)	Stripe Connect Express files 1099-K/1099-NEC where thresholds met; platform exports payouts by tax_year as backup (already in schema).
FTC	Truthful pricing claims: every price card already shows provenance + freshness; keep "prices verified Xm ago" language. Referral/testimonial disclosures per 16 CFR 255.
USDOT / FMCSA	Not applicable: intrastate, non-CDL passenger vehicles, no interstate for-hire freight at launch. Re-check if any city pair crosses state lines (e.g., KC metro).

California (launch state)

Item	Agency	Action / cost
Seller's permit + marketplace facilitator registration (AB 147)	CDTFA	Register before first taxable sale; platform collects/remits tax on taxable goods it facilitates. \$0. Avalara handles calc; CDTFA filing monthly/quarterly.
Foreign qualification (if GetBriefed formed outside CA)	CA SOS	~\$70 + \$800/yr franchise tax if LLC doing business in CA. Material cost — confirm entity state first.
Fictitious Business Name ("Clinkit")	County (San Joaquin)	~\$50 + newspaper publication.
Prop 22 (app-based driver law)	—	Clinkit is likely a "delivery network company" under Prop 22. Compliance duties: 120% of applicable min-wage earnings floor on engaged time + \$0.37/mi (2026, CA Treasurer-indexed) , healthcare stipend at 15+/25+ engaged hrs/wk, occupational-accident insurance (\$1M), anti-discrimination policy, no mandatory schedules/exclusivity. ✔ IMPLEMENTED: engaged-time capture, GPS-validated mileage, floor calculator, and 14-day settlement live in <code>server/src/core/prop22.js</code> + <code>/api/runners/prop22</code> ; published policy at <code>07-prop22-policy.md</code> .

Item	Agency	Action / cost
◆ Motor Carrier Permit (DMV MCP) for property transport for hire	CA DMV	Ambiguous for gig couriers in private cars; major platforms have faced this question. Options counsel must weigh: platform-level MCP, runner attestation model, or exemption analysis. Do not scale past soft-launch without written counsel guidance.
Workers' comp	—	Not required for true 1099 ICs, but Prop 22 occupational-accident policy is (see above + insurance checklist).
CCPA/CPRA	—	Rights endpoints already shipped (/api/auth/me/export , DELETE /me); privacy policy draft in this folder; no sale of PI.

City-level (corridor)

City	Requirement	Est. cost
Tracy	Business license (tax certificate), renew annually	~\$50–100
Mountain House (CSD) / unincorporated San Joaquin	County business license	~\$50
Stockton	Business license + possible home-occupation permit if founder-address registered	~\$100
All	No food-facility permit needed (no restaurant food, no repacking; runners buy retail sealed goods). If we later add restaurant food, county EHD permits apply — out of scope.	

Other states in the 20-city list (summary — full per-city notes in docs/finance/20-cities.md)

- **TX, AZ, NV, FL, TN, NC, GA, CO, WA, UT:** all have marketplace-facilitator statutes — register with each DOR before first sale in-state; grocery taxability varies (TX/UT tax some groceries at reduced rates — Avalara tax codes handle). No TNC-style registration for goods-only couriers in these states as of knowledge cutoff. ◆ **WA:** check Seattle's app-based worker minimum-pay ordinance (PayUp) — **applies to goods delivery**; deprioritizes Seattle (flagged in city list).
- **NY/NJ/MA/IL:** higher IC-classification risk (ABC-test states); keep in months 7–12 with counsel review. NYC: app-based delivery minimum pay rule currently targets restaurant food platforms — verify scope before NYC.

Independent-contractor posture (all states)

The Runner ICA (01-runner-ica.md) is drafted around the strongest available factors, in the spirit of DOL Opinion Letter FLSA2019-6 (since withdrawn — ◆ current DOL economic-realities rule is less favorable; CA relies on Prop 22 instead of Borello/ABC); runner sets price via bid markup, accepts/rejects freely, multi-apps, supplies own vehicle/phone, no schedules, no supervision, per-job payment. Anti-patterns to never introduce: mandatory shifts, exclusivity, uniform requirements, platform-set hourly pay.

Deprioritized / flagged cities

Seattle (PayUp pay floor), NYC (pay-rule scope + congestion), SF (HQ-tax + density of competitors), Chicago (lease-tax nexus complexity), Boston (ABC test). All still listed in the 20-city file with barrier notes.